NATIONAL UNIVERSITY OF SINGAPORE

LC2007/LCJ5007

CONSTITUTIONAL AND ADMINISTRATIVE LAW

(Semester 2: AY2024-25)

Time Allowed: 29 April 2025 (9.00am – 11:30am)

INSTRUCTIONS TO CANDIDATES

1. **DO NOT READ BEYOND THIS FRONT PAGE UNTIL YOU ARE INSTRUCTED TO DO SO.**

2. This examination paper contains FIVE **(5)** questions (and comprises FIVE **(5)** printed pages, inclusive of this cover page.

3. Section A (Administrative Law) contains one **compulsory** question which is worth 40% of the marks awarded for the written examination.

4. You may answer **any TWO questions** in Section B (Constitutional Law). Each question in this section carries 30% of the marks to be awarded.

5. Indicate the question number clearly. Students using hardcopy answer books should write the answers for each question on a new page/book.

6. The standard of English expression used in your answer will be taken into account when it is marked.

7. This is an OPEN BOOK examination.

SECTION A (ADMINISTRATIVE LAW)

This is a compulsory question and must be attempted

Question 1

Corporate Finances Control Act 2015

An Act to restrict and regulate corporate expenditure to safeguard national interests.

Restricted entities

3. The Minister may declare a company incorporated or operating in Singapore as a restricted entity.

4. A restricted entity may not make payments exceeding S$100,000 to another person (referred in this Section as the "counterparty") without written authorisation from the Minister.

5. For the purposes of Section 4, the Minister may only refuse written authorisation to make payments to counterparties incorporated or operating outside Singapore, and only if the Minister is satisfied that the payment is not contrary to national interest.

Appeals and Review

6. A declaration made under Section 3 may be appealed to the Accounting and Corporate Regulatory Authority (ACRA), under a procedure to be adopted at its discretion.

7. The Minister's decision under Section 5 shall be final.

In 2016, the Ministry for Trade and Industry (MTI) issued a Circular on its website stating that:

> "The Minister will not declare a company incorporated or operating in Singapore as a restricted entity if:
>
> a) Its business is not part of a major industry in Singapore; or
> b) Its capital is no more than $ 5,000,000."

Gamestonk is a local start-up which develops and sells board games. It is one of the few companies operating in this niche field in Singapore. Gamestonk's founders were initially cautious about incorporating in Singapore given the 2015 Act, but concluded that, by virtue

of the MTI Circular, they were unlikely to be declared a restricted entity. With a capital of $ 2,000,000, they founded their in 2017. In 2018, Gamestonk created *North Coast Plan*, a board game poking fun at the political blunders of a fictional Singaporean politician named Booboo Ong. *North Coast Plan* was a hit and is currently in its fourth edition.

In March 2025, the Minister declared Gamestonk a restricted entity, and as a further punitive measure, directed Gamestonk to pay a fine of S$50,000. The Minister explains his reasons:

> "The playing of board games is a degenerate millennial hobby which has rendered Singapore's middle-aged professionals unproductive. To eradicate this social evil, closer oversight of the industry is needed. I should also mention that political board games, in particular, may corrupt the minds of young Singaporeans and stir political instability for the future."

Gamestonk appealed to ACRA, which constituted a three-man panel for the hearing. One of the panellists was Bob Ong, former MP for North Coast GRC (until he lost in the 2020 general elections) and the Head of the Government's new Task-Force against Millennial Unproductivity. During the hearing, Ong persistently questioned Gamestonk's representatives on their decision to enter this line of work, and asked them to "search their soul and consider if that was the right decision for Singapore". Ultimately, Gamestonk's appeal was rejected.

Last week, Gamestonk was denied authorisation to make two payments. The first was to a seller in Singapore, for the rights to manufacture and sell a hot new local board game, *Kopi Time*, for $150,000. The second payment was of $99,000, to an architectural firm in Ruritania, which has been hired to design Gamestonk's new headquarters in Singapore. Accompanying this decision was a note by the Permanent Secretary of MTI, stating that the payment was denied on the advice of Bob Ong, who opined that authorizing these payments would "send the wrong signal about his Task-Force's efforts to address millennial unproductivity".

Advise Gamestonk.

End of Section A

SECTION B (CONSTITUTIONAL LAW)

Choose any two questions

Question 2

"The admonition that Part IV liberties be generously construed in *Ong Ah Chuan* should require complete liberty to engage in religious practices. This should include the liberty to define religion for ourselves, and to have the religious practices we consider important be protected. However, in Singapore, restrictions on religious freedom, including public order concerns, have been overbroad and taken precedence over the freedom. This is deleterious to recognised constitutional principles."

Critically discuss.

Question 3

In February 2025, the Prime Minister makes a statement in Parliament that: "As national security is a major public interest, I will henceforth not recommend for appointment, Supreme Court judges who have not completed their full-time national service".

The civil society group And Rights for All (ARA), decides to challenge this policy in court. In the meantime, before the case is set down for hearing, the President, appoints the 68-year-old Simon Yayamukar, a retired Chief of Army with an LLB from the University of Singapore, as a Judge of the Supreme Court for 1 year.

Subsequently, the President, in a purported exercise of his power under Article 95(5)(a), appoints Yayamukar to hear ARA's challenge.

The ARA cries foul and engages you to argue this case. *What arguments will you raise on behalf of ARA?*

Question 4

"Singapore courts have read Article 9 in an overly restrictive manner."

Critically discuss

Question 5

The Online Subject (TOS), a popular online newspaper, publishes an article lambasting the Singapore government for its economic policies, which it claimed had caused a recession.

TOS received a Stop Communication Direction under the Protection from Online Falsehoods and Manipulation Act 2019 (POFMA) requiring TOS to take its article down, on the ground that the recession is caused by the global trade war and not the government's policies. The Direction is made pursuant to section 12(1) (read with section 12(7)) of POFMA which states:

> **Stop Communication Direction**
>
> 12.(1) A Stop Communication Direction is one issued to a person who communicated the subject statement in Singapore, requiring the person to stop communicating in Singapore the subject statement by the specified time.
>
> ....
>
> (7) In this section ... (b) "stop communicating", in relation to a statement, means taking the necessary steps to ensure that the statement is no longer available on or through the internet to end-users in Singapore, including (if necessary) the removal of the statement from an online location ...

In addition, the Stop Communication Direction requires TOS to publish a correction notice stating that the recession was caused by the global trade war and not the government's economic policies. This is said to be pursuant to section 12(3) of POFMA which states:

> 12(3) A Stop Communication Direction may also require the person to whom it is issued to do one or both of the following:
>
> (a) to communicate in Singapore a correction notice in the specified form and manner, to a specified person or description of persons (if any), and by the specified time;
>
> (b) to publish a correction notice in the specified manner in a specified newspaper or other printed publication of Singapore.

TOS refuses to take down the article, arguing that it is of critical importance that Singaporeans are aware of the incompetence and corruption of the government. It also objects to publishing a correction notice with the content as specified.

Advise TOS on the viability of any constitutional challenge they might make against the relevant provisions of POFMA stated above.

End of Section B

--- END OF PAPER ---

NATIONAL UNIVERSITY OF SINGAPORE

LC2007

CONSTITUTIONAL AND ADMINISTRATIVE LAW

(Semester 2: AY2020-21)

Time Allowed: 28 April 2021 (9.00am – 11:30am)

INSTRUCTIONS TO CANDIDATES

1. **DO NOT READ BEYOND THIS FRONT PAGE UNTIL YOU ARE INSTRUCTED TO DO SO.**

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3. Section A (Administrative Law) contains one **compulsory** question which is worth 40% of the marks awarded for the written examination.

4. You may answer any TWO questions in Section B (Constitutional Law). Each question in this section carries 30% of the marks to be awarded.

5. Start each answer on a new page and indicate the question number clearly.

6. This is an OPEN BOOk examination

SECTION A (ADMINISTRATIVE LAW)

This is a compulsory question and must be attempted

Question 1

Wildlife Protection Act 2018

An Act to protect, preserve and manage wildlife to maintain a healthy ecosystem and to safeguard public safety and health, and for related matters.

"animal" includes any mammal, bird, reptile, amphibian, fish or invertebrate, whether of a wild nature or otherwise;

"protected wildlife species" means a wildlife species prescribed as a protected wildlife species for the purposes of this Act

"wildlife" means an animal that belongs to a wildlife species, and includes the young or egg of the animal;

"wildlife species" means any species of animals of a wild nature, but excludes domestic dogs and cats, horses, cattle, sheep, goats, domestic pigs and poultry

Feeding, releasing, and keeping of wildlife

5A.—(1) A person must not intentionally feed, release, or keep any wildlife in any place unless the person has the Minister's written approval to do so.

(2) A person who has the Minister's written approval mentioned in subsection (1) must comply with the conditions of the approval.

(3) The Minister may give a written approval subject to any condition the Minister thinks fit; and in any form or manner the Minister thinks fit (including by publishing the written approval and the conditions of the approval on the Ministry of Wildlife Protection's official website).

(4) A person who contravenes subsection (1) or (2) shall be guilty of an offence and shall be liable on conviction —

(a) for a first offence, to a fine not exceeding $5,000; and

(b) for a second or subsequent offence, to a fine not exceeding $10,000.

(5) Offenders may be liable to heightened fines, up to a limit of $100,000, due to aggravating factors.

Inquiry Committee

7. The Minister may, where he deems fit, constitute an inquiry committee to investigate complaints.

Rules

21.— The Minister may make rules necessary or convenient to be prescribed for giving effect to this Act.

Finality

50. The decisions of the Minister are final.

Uncle Wozzer is a nature enthusiast who, affected by COVID-19 travel restrictions, now regularly goes jungle trekking at Pulau Ubin. A semi-retired veterinarian, Wozzer runs a small clinic in Bukit Timah where he treats injured animals he sometimes encounters on Pulau Ubin, and releases them back to Ubin upon recovery.

During his 5 March 2021 visit to Pulau Ubin, two chubby dogs ran up to Wozzer who was picnicking in the jungle. He recognises them as Aunty Fizzy's dogs, his friend who runs the drinks stall at the pier, and shares

his lunch with them, taking several wefies. Through dense and dark foliage, a Wildlife Protection officer some 200m away spots this and reports Wozzer to the Ministry of Wildlife Protection (MWP) for feeding wild boars.

Just before returning to mainland Singapore, Wozzer sees a monitor lizard with an injured leg trapped in a mineral water drum behind Fizzy's drinks stall. He decides to return to Pulau Ubin the next day to treat the lizard, after obtaining the MWP's necessary approval. He asks Fizzy to help him watch over it. Back at Bukit Timah, Wozzer makes an online application.

The MWP website states that, as a matter of policy, approval to keep any wildlife will be granted if:

(1) There is an imminent threat to the safety and well-being of the wildlife;
(2) The wildlife is released back to its original habitat within 3 days of the rescue; and
(3) The person(s) handling the wildlife has been vaccinated for COVID-19 in the last 3 months, on instruction from the COVID-19 Multi-Ministry Task Force to reduce community transmissions.

Additionally, the applicant must provide details of the wildlife and why it is necessary to keep the wildlife.

Wozzer submits the following: (1) the monitor lizard risks losing its leg if not treated swiftly; (2) given the nature of the injury, the monitor lizard needs at least 4 days of treatment; and (3) while he has been vaccinated within the last 3 months, his front-desk clerk has not but is not involved in handling or treating animals.

On 6 March 2021, Wozzer is informed via email that his application is rejected as the Minister determines – based on his consultation with the Board of Singapore National Parks – that monitor lizards need not be treated for injuries and because the clerk has not been vaccinated. The email also directs Wozzer to cease his clinic operations until his front-desk clerk is vaccinated. Wozzer is upset by the Minister's directions, especially since it was recently reported in the news that the Minister detests all reptiles after a Komodo dragon bit him.

Wozzer immediately emails the Minister a photo taken by Fizzy of the injured monitor lizard, to provide evidence of the grievous injury. He also attaches expert statements from two veterinarians that "for the best survival outcomes, the animal must not be released back to its original habitat within 3 days of treatment". Within the hour, the Minister sends an email reply, stating his decision is final.

Later that day, a follow-up email invites Wozzer to come to the Ministry on 8 March 2021 to meet with the Inquiry Committee, comprising senior MWP officials and chaired by its Permanent Secretary Mr Noi Z-Man, to explain the circumstances regarding the wild boar feeding. Wozzer has made multiple reports to the police complaining about how Noi, his former neighbor, blasted noisy music late at night.

At the meeting, Wozzer is unprepared and can only flash his phone wefies with Fizzy's dogs to the Inquiry Committee. Noi is belligerent and continually demands more evidence. Noi does not allow the Inquiry Committee members to question Wozzer. The meeting concludes with Noi telling Wozzer he may be fined $100,000 under of section 5A(5). Wozzer asks Noi for clarification on the aggravating factors but does not get an answer. Noi instead tells Wozzer the Committee will communicate its decision in 2 weeks.

Uncle Wozzer is anxious the fine will put his small clinic out of business and asks you for legal advice.

Advise Uncle Wozzer on his legal recourse.

End of Section A

SECTION B (CONSTITUTIONAL LAW)

Choose any two questions

Question 2

The constitution is a legal text and it should not be interpreted as partly written and partly unwritten. Courts are not mini legislatures; their sole function is to interpret the text as it is and not imply unwritten rights or norms into the constitution.

Critically discuss, in light of recent local jurisprudence.

Question 3

On 23 March, the government announced that the policy prohibiting nurses from wearing tudung on the job was under review, pursuant to ongoing discussions with the Muslim community. The government considers its policy key to religious harmony in a plural but secular society. It fears that "any government concession to religious pressure could cause other groups to aggressively make similar demands."

Shamsiah, a former madrassah student about to graduate as the Singapore Nursing College valedictorian, is concerned she may be asked to remove her tudung when she joins the public healthcare service. She writes a viral Facebook post arguing that wearing the tudung is an essential aspect of her faith and that she is thinking of applying for judicial review to challenge the government policy restricting the wearing of tudung by public officers and in public spaces (like schools). Netizens are all a-twitter at this prospect.

The mainstream media reports on Shamsiah's facebook post and it was extensively discussed in a *Staid Times* op-ed entitled "Tudung or not Tudung" written by public law expert Hee Ja Bing. Hee argues it is inconsistent to prohibit wearing tudungs in certain contexts, where other religious groups like the Sikhs have enjoyed 'concessions' since colonial times: Sikh police officers may wear turbans and Sikhs riding motorcycles are not compelled to remove turbans under the Road Traffic (Helmet Exemption) Order 2005. However, Sikhs cannot carry *kirpans* (daggers), which observant Sikhs are supposed to wear. Hee argues: "the helmet exemption poses a greater risk to public safety than women wearing headscarf; indeed, President Halimah is not hampered from discharging her public duties." Hee urges that secularism is better realised by treating religious groups equally in matters of religious practice; Hee advocates lifting the tudung ban, "as community integration is better achieved by acclimating citizens to differences rather than enforced uniformity."

You are a Ministry of Law officer. The Law Minister wants you to help draft a legal opinion on the possible constitutional issues that Shamsiah's case may raise, and to assess whether the courts are likely to uphold government policy.

Question 4

"Singapore courts have not only failed to live up to their constitutional duty of giving fundamental liberties "a generous interpretation" as enjoined by the Privy Council in *Ong Ah Chuan* [1980], they have supported an unjustifiably broad interpretation of permissible restrictions on these liberties, in deference to the other two branches of government."

Is this a fair statement in the light of developments in the 21st century? Do the courts meaningfully contribute to the practice of constitutionalism?

Question 5

In *Syed Suhail bin Syed Zin v AG* [2020] SGCA 122, the Court of Appeal stated that where differential treatment is afforded to individuals under Article 12(1) of the Constitution, such differential treatment would only be reasonable if 'it was based on legitimate reasons'. What are the implications of this statement? Should this change the way we interpret Article 12(1)?

End of Section B

--- END OF PAPER ---

NATIONAL UNIVERSITY OF SINGAPORE

LC2007

CONSTITUTIONAL AND ADMINISTRATIVE LAW

(Semester 2: AY2021-22)

Time Allowed: 29 April 2022 (9.00am – 11:30am)

INSTRUCTIONS TO CANDIDATES

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5. Start each answer on a new page and indicate the question number clearly.

6. This is an OPEN BOOK examination

SECTION A (ADMINISTRATIVE LAW)

This is a compulsory question and must be attempted

Question 1

COVID-19 Pandemic Management Act 2020

An Act for the purpose of preventing, protecting against, delaying or otherwise controlling the incidence or transmission of COVID-19 in Singapore for public health and safety.

Entering Singapore
4A. – (1) A traveller entering Singapore must be asymptomatic and test negative for COVID-19 prior to departure.

(2) A traveller must be fully vaccinated at least 14 days prior to his or her entry into Singapore.

(3) An exemption from the full vaccination requirement may be granted pursuant to an application to the Minister.

Powers
48. – (1) The Minister has absolute discretion to decide on public health and safety matters during a pandemic.

(2) The Minister may also delegate powers to MOH officers to fulfil the purposes of this Act.

Penalties
49. Any attempt to enter Singapore without exemption or being fully vaccinated shall be guilty of an offence and shall be liable to a fine not exceeding $10,000 and banned from entering Singapore for up to 3 years.

Appeal
50. Appeals may be considered by the Minister if fresh evidence is provided. All appeals decided by the Minister are final.

Norberto, an Argentinian, is a renowned footballer who competes internationally in this sport. On 5 October 2021, Norberto and his team travelled to participate in the Singapore Raru Cup International (SRCI). Singapore maintains strict travel and border control rules due to the COVID-19 pandemic. Travellers may be refused entry if not fully vaccinated.

Norberto remains unvaccinated and has been vocal about his belief that everyone has the autonomy to decide what goes into their bodies. Norberto contracted COVID-19 on 15 September 2021 and tested negative on 22 September 2021. On 25 September 2021, Norberto applied to the Ministry of Health (MOH) for a vaccination exemption to enter Singapore for the tournament.

The MOH website states that, as a matter of policy, an exemption will be approved and granted if:

(1) The applicant has underlying medical conditions that prevent him/her from being vaccinated; or
(2) The applicant has a history of COVID-19 infection, but has recovered and tested negative on the PCR test between 10 – 60 days prior to his/her entry; and
(3) Notwithstanding recovery, the applicant must also show a daily negative PCR test result between the date of his recovery and the date of application.
(4) The applicant's entire household is vaccinated or satisfies conditions (1) or (2) above.

All applicants must provide medical certification for the above conditions. They must also explain why it is necessary to enter Singapore.

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In his application, Norberto submitted: (1) a positive PCR test report confirming his COVID-19 infection on 15 September 2021; (2) a medical certificate of his recovery with a negative PCR test report on 22 September; (3) negative PCR test reports for 23 to 25 September, along with a doctor's note that Norberto has a residual cough that will clear up in a week but is free from the COVID-19 virus; (4) medical certification that his unvaccinated wife had also recovered from COVID-19 on 22 September 2021; (5) a medical letter confirming that his 3-year old son is currently ineligible for vaccination; (6) and a letter from the SRCI organizers that he has satisfied all safe-participation and vaccination-exemption requirements to play in the tournament.

At 9:00am on 26 September 2021, Norberto is informed via email from the Ministry of Health that his application is rejected and the Minister's decision is final. The Minister has decided that: (1) based on determination of the Director of the Singapore Public Hospital, since Noberto is still coughing, an exemption would risk public health and safety; (2) his household (wife and son) are unvaccinated; (3) Norberto's public opposition to vaccination threatens Singapore's national security, as advised by the Ministry of Home Affairs.

That same day, Norberto emailed the Minister at 4:00pm to appeal. He submitted a PCR test report dated 26 September 2021 showing he continued to test negative, a letter from three doctors confirming he was no longer infectious, and a summary of two reports from the authoritative Global Council of Coronavirus Research showing that those who have recovered from COVID-19 could still show symptoms while being non-infectious and that vaccination does not prevent one from carrying the COVID-19 virus or being infectious. Within 5 minutes, the Minister replies by email that his 26 September 2021 decision was final.

Another 5 minutes later, Ms Federdal, the MOH Permanent Secretary informed Norberto by email that he may travel to Singapore despite the Minister's exemption rejection. Ms Federdal stated: "As our Minister said in the latest press conference on 20 September 2021, as Singapore moves towards endemic living with COVID-19, the Government has adopted a policy to fully support athletes travelling to Singapore to participate in important international tournaments, like the SRCI. All you need to do is to submit an on-arrival exemption application which MOH officials stationed at Changi Airport will immediately review. You will not be subjected to a fine or ban for

attempting to enter Singapore without a prior exemption. We have recently granted on-arrival exemptions to athletes in similar situations, provided they are asymptomatic and test negative upon arrival."

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Norberto arrived in Changi Airport on 5 October 2021. He was interviewed by a three-member committee of MOH officers for his on-arrival exemption application. He presented all the documents that had been previously submitted in his application and in his email to the Minister. He was no longer coughing and tested negative on arrival.

The committee Chair, Ms Federdal, continually challenged Norberto on his refusal to be vaccinated at the interview. Not only did she refuse to let her co-panellists speak, she also refused to read his supporting documents or let Norberto explain his request for an on-arrival exemption. At the end of a 30-minute interrogation, Ms Federdal told Norberto he would be fined $20,000 and banned from Singapore for 5 years for attempting to enter without being fully vaccinated or otherwise being granted an exemption. He would also fulfil a 30-day quarantine at an SHN hotel before deportation.

Norberto checks into his SHN hotel and zooms with you, Singapore's top administrative lawyer. Norberto tells you that he discovered on a web search that Ms Federdal had previously announced at the launch of the national vaccination drive that those who reject vaccinations are irresponsible, pose a risk to public health, and thus should not be allowed free movement in public. Furthermore, under her well-known "Vaccine Vigilante" avatar, Ms Federdal also refutes "vaccine-sceptics" social media posts in her personal capacity and free time.

Advise Norberto on his legal recourse.

End of Section A

SECTION B (CONSTITUTIONAL LAW)

Choose any two questions

Question 2

Matters pertaining to religious freedom and who should benefit from it should be handled judicially, but matters pertaining to religious harmony should be handled extra-judicially and informally, to best secure liberty and civil peace.

Critically discuss.

Question 3

In *Tan Seng Kee v Attorney-General and Other Appeals* [2022] SGCA 16, the Court of Appeal observed it had taken divergent approaches in the application of the reasonable classification test in *Lim Meng Suang v AG* and *Syed Suhail bin Syed Zin v AG.*

What is the difference in approach? How might the Court arrive at different results when applying one test over the other? In your opinion, which approach is preferable?

Question 4

"Constitutional interpretation is no different from statutory interpretation. Courts identify a constitutional provision's purpose only from its text, context and relevant extrinsic materials under Section 9A of the Interpretation Act."

Do you agree? Is this consonant with the constitutional role of courts?

Question 5

"Danger lurks [on] the Internet"

Minister of State Tan Kiat How, Parliamentary debate, 3 September 2020

While the internet facilitates the enjoyment of article 14 free speech guarantees, it may simultaneously introduce untruthful and defamatory information harmful to the individual and society. Critically discuss the extent to which the law has been used to manage harmful internet speech and whether this is justified in light of article 14 protections.

End of Section B

--- END OF PAPER ---

NATIONAL UNIVERSITY OF SINGAPORE

LC2007/LCJ5007

CONSTITUTIONAL AND ADMINISTRATIVE LAW

(Semester 2: AY2022-23)

Time Allowed: 28 April 2023 (9.00am – 11:30am)

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6. This is an OPEN BOOK examination

SECTION A (ADMINISTRATIVE LAW)

This is a compulsory question and must be attempted

Question 1

Singapore Broadcasting Act (1994)

An Act to regulate broadcasting services accessible by Singapore end-users.

Powers of the Minister

3.—(1) The Minister has the authority to grant licences to persons with the requisite professional broadcasting competences for the regulation of the broadcasting industry.

(2) The Minister may direct a broadcasting professional on his/her functions under this Act.

(3) The Minister may limit a broadcasting professional's functions if it appears to the Minister to be requisite or expedient to do so —

(a) when any public emergency occurs, in the public interest or in the interests of public security, national defence or relations with the government of another country; or

(b) to discharge or facilitate the discharge of an obligation binding on the Government by virtue of its being a member of an international organisation or a party to an international agreement

(4) Any directions given under subsection (2) or (3) may include provisions for –

(a) the prohibition or regulation of any broadcasting service; or

(b) the carrying out of any purpose which the Minister thinks necessary.

(5) A person to whom subsections (2), (3) or (4) applies must give the Minister's directions immediate effect.

Since retiring from professional tennis in 2013, Gerry Lee has hosted a weekly radio talkshow on "93.9FM Mad-For-Tennis", which discusses global tennis events and how sports can improve mental and physical health.

In 1998, five radio channels set up the Singapore Broadcasting Association (SBA) as a self-regulatory organization for Singapore radio presenters, to ensure responsible radio broadcasting. The SBA publishes a "Code of Conduct" covering issues like talkshow length and content, and licensing of radio presenters. It publishes an annual "Honour Roll" for the top three radio presenters whose talkshows have improved the lives of ordinary Singaporeans. Although membership is voluntary, the SBA is influential in the broadcasting industry and regularly liaises with the government on radio broadcasting matters; its Code of Conduct is regularly updated in consultation with the Ministry of Digital Broadcasting and Communication (MDBC). SBA members receive automatic approval from the MDBC for their radio programmes. This privilege is not extended to non-members who must make a separate application to the SBA for review and recommendation before this is forwarded to the MDBC for final approval. To date, 95% of radio presenters – including Gerry – are members of the SBA. Gerry has also been on the SBA Honour Roll for five years due to the positive feedback for his talkshow.

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On 14 February 2023, Gerry hosted a morning talkshow on the impact of COVID-19 on sports events. He argued that sports event be held openly, as they were pre-pandemic, and disagreed with regulations mandating full vaccination and PCR testing for entering Singapore to participate in sports events. On live air, Gerry recalled how his close friend, Norberto, was denied entry into Singapore in 2022, for non-compliance with these regulations. Gerry further stated that "the government's policies on vaccination and border controls are unnecessary, outdated, and authoritarian". Subsequently, the Health Minister called up the SBA Chairman at lunchtime to say that Gerry "should be disciplined for his comments". The SBA Chairman immediately emailed Gerry, requesting that Gerry "turn up tomorrow, 9am, at the SBA meeting room for a brief discussion with a few SBA colleagues".

On 15 February 2023, Gerry was shocked to find himself facing the SBA Chairman and four other senior SBA Board Members sitting as a disciplinary tribunal at the 9am meeting. For the next four hours, the SBA Chairman quizzed Gerry about how he selected content for his weekly talkshow, about global tennis events, and the correlation between sports and mental and physical health. The four other senior SBA Board Members looked bored and were busy tapping on their mobile phones. When they spoke, it was only to agree with whatever the SBA Chairman said. At noon, three senior SBA Board Members said, "We have a lunch meeting. Both of you continue. We shall agree with whatever you decide. In any case, we were largely in agreement about Gerry's actions when we talked yesterday. We have a tennis club buddy ready to replace him and his talkshow."

At 1pm, the SBA Chairman and the remaining Board Member concluded the session. The SBA Chairman thanked Gerry for his services on "93.9FM Mad-For-Tennis", informing him that his talkshow was cancelled and his licence indefinitely revoked. The SBA also blacklisted Gerry and no longer wished to associate itself with him. Aghast and confused, Gerry asked for the reason for this sudden, drastic penalty, to which the SBA Chairman said he was not entitled to reasons for this decision, and further told Gerry that he could only re-apply for his licence directly from the MDBC.

Gerry's current income is derived solely from his radio talkshow and worried about losing his livelihood, he wrote to the MDBC explaining his situation and requested for more information on licence application procedures. The MDBC's Permanent Secretary responded with the following information:

"As a matter of policy, a licence to host talkshows will be approved and granted by the Minister of Digital Broadcasting and Communication if the applicant can show that he/she:

1) Has at least 5 years' experience in radio hosting;
2) Can speak at least three of the official languages of Singapore;
3) Has a diploma in audio equipment repair."

All applicants must provide documentary evidence of the above and explain the necessity of obtaining a licence. The Minister will evaluate each application individually and any decision will be final."

***

Gerry submitted his application on 16 February 2023, providing all the necessary evidence, except requirement (3) as he does not have a diploma in audio equipment repair. Gerry explained he had been a professional sportsmen all his life and fter retirement, he received an SBA licence for radio hosting, which he had for 10 years until the revocation on 15 February 2023. He explained that he was a competent and popular radio presenter and emphasized his livelihood post-retirement depended on his radio-hosting activities. Lastly, he noted that "93.9FM Mad-For-Tennis" had a large team of capable audio technicians such that radio presenters generally did not need to troubleshoot or repair any technical problems.

At noon on 17 February 2023, MDBC sent Gerry an email stating his application was rejected and that no further appeal was available. The Minister's decision rejected the application for two reasons: (1) on the Minister of Health's advice, Gerry's views about the government's vaccination and border control policies are contrary to Singapore's national interest and he would have a corrupting influence on the public's acceptance of Singapore's vaccination policies; and (2) having consulted the SBA Chairman, Gerry's talkshow is insignificant and if the Minister granted him the licence, it would be embarrassing to the SBA and MDBC.

***

Gerry Lee is desperate to regain his livelihood and turns to you for legal advice. Advise him on whether he has recourse to judicial review and what grounds he might have to challenge these decisions

End of Section A

SECTION B (CONSTITUTIONAL LAW)

Choose any two questions

Question 2

The treatment of 'race' and 'religion' under the Singapore constitution is a distinctive local feature. While the 1966 Constitutional Commission advocated a non-racial approach towards constructing a multi-racial secular democracy, and rejected any proposals that would have involved the 'complicated task of defining the various minority groups', such as separated electoral rolls, the High Court in *Ravi v AG* [2017] SGHC 163 stated that the Singapore Constitution "is not race-neutral". We thus have institutions that are shaped specifically by race which engages definitional questions necessary to their operationalization. So too, the Constitution does not define 'religion' which is a threshold question that must be settled before invoking article 15 rights.

Who authoritatively determines questions of 'race' and 'religion' within the Singapore constitutional order? Do you think that such questions should be entrusted exclusively to the courts or would this raise constitutionally significant problems?

Question 3

'The local courts have unjustifiably limited the range and scope of Article 12 by limiting it to the reasonable classification test.'

Critically analyse and discuss the validity of this statement.

Question 4

…, where a right cannot be found in the Constitution (*whether expressly or by necessary implication*) *the courts do not have the power to create such a right out of whole cloth simply because they consider it to be desirable* or perhaps to put it in terms that might *appear* more principled, to be part of natural law ... [R]eading unenumerated rights into the Constitution would entail judges sitting as a super-legislature and enacting their personal views of what is just and desirable into law, which is not only undemocratic but also antithetical to the rule of law. *Yong Vui Kong* [2015] 2 SLR 1129 at [73]-[75]

To what extent is it possible to argue that implied rights and norms that shape the development of the content of express rights are part of the Singapore constitutional landscape?

Question 5

"[T]he words "life or personal liberty" in Art 9(1) refer *only* to freedom from unlawful deprivation of *life* and unlawful *detention* or i*ncarceration*. Such a restrictive reading of Art 9(1) is supported by the text, structure and history of the provision."

Tan Seng Kee v AG [2022] SGCA 16 at para 247

Critically discuss the implications and validity of such interpretation in relation to the right to life and personal liberty in accordance with the law, bearing in mind the approach of the Singapore court towards constitutional interpretation.

End of Section B

--- END OF PAPER ---

NATIONAL UNIVERSITY OF SINGAPORE

LC2007/LCJ5007

CONSTITUTIONAL AND ADMINISTRATIVE LAW

(Semester 2: AY2023-24)

Time Allowed: 30 April 2024 (9.00am – 11:30am)

INSTRUCTIONS TO CANDIDATES

1. **DO NOT READ BEYOND THIS FRONT PAGE UNTIL YOU ARE INSTRUCTED TO DO SO.**

2. This examination paper contains FIVE **(5)** questions (and comprises FIVE **(5)** printed pages, inclusive of this cover page.

3. Section A (Administrative Law) contains one **compulsory** question which is worth 40% of the marks awarded for the written examination.

4. You may answer **any TWO questions** in Section B (Constitutional Law). Each question in this section carries 30% of the marks to be awarded.

5. Start each answer on a new page and indicate the question number clearly.

6. This is an OPEN BOOK examination.

SECTION A (ADMINISTRATIVE LAW)

This is a compulsory question and must be attempted

Question 1

Global Corporations Practices Act

An Act overseeing the integrity of global corporations operating in Singapore to safeguard national interests.

Interpretation

2. "Public officer" means a Minister of Government, a legislator, or a public servant of the relevant State.

Corruption

3. Any person who gives any gratification as an inducement to or reward for any Singaporean public officer's performance or non-performance of his duties shall be guilty of an offence.

Measures against Foreign Influence

4. Any corporation which carries on business in Singapore and which has any shares held by a foreign public officer must declare those details to the Minister of Trade and Industry.
5. If the Minister is satisfied that a corporation is in breach of Section 4, he may by Order require the corporation to suspend its operations for one year.
6. The Minister's decision under Section 5 is final.

The Singapore-Prekka Chamber of Commerce ("SPCC") is a Singapore-based, self-regulatory association of tradespersons from the country of Prekka. The SPCC works closely with Singapore's Ministry of Trade and Industry ("MTI") to facilitate investment and business opportunities for all entrepreneurs from Prekka seeking to enter the Singapore market. Recently, the SPCC has begun issuing "Certificates of Approval" to certain Prekka businesses. According to the SPCC's website, Certificates are issued to Prekka companies that "substantially further" Singapore's "economic and public interests". The Certificate has no legal effect, but its issuance is done with the acquiesence of MTI and it is effectively the only way for Prekka companies to clinch business deals in Singapore.

Oz Warren is a director and shareholder of Grabbu, a Prekka tech company that recently commenced its operations in Singapore. He is also former member of the Prekka legislature. Oz Warren seeks to expand Grabbu's networks in Singapore by obtaining the SPCC's Certificate of Approval (COA). Grabbu's first two applications were rejected by SPCC. No reasons were given. Oz Warren, desperate to obtain the COA, writes to Yam Seng, the SPCC Executive Chairman, for a meeting to clarify the application process.

During the meeting, Yam Seng explains that SPCC's policy is to evaluate furtherance of Singapore's "economic and public interests" based on two factors: (1) the company demonstrates that it will be able to generate revenue of at least $50 million dollars in its first year of operations; and (2) the company is a good global corporate citizen who will comply with the Global Corporation Practices Act. Oz Warren responds that Grabbu will fulfill those conditions and more – it will also list on the Singapore Stock Exchange within a year, and it will merge with a firm based in Silicon Valley. Oz Warren also adds that – given his influence in Prekka – he will convince Sailor Smith, the top Prekka-pop act whose ticket sales are known to drive up national economies, to play exclusively in Singapore for 2 weeks and to provide all SPCC members with complimentary tickets to the concert. Oz Warren then slides a hard copy of Grabbu's third application – along with the relevant documents – over to Yam Seng, who acknowledges its receipt.

That evening, Oz Warren receives an email from Yam Seng stating: "I have looked at your application. Please come to the SPCC boardroom tomorrow afternoon to discuss the COA with some members of the SPCC." Oz Warren shows up but, to his consternation, it turns into an inquisitorial hearing by a three-person Panel. The Panel consists of Yam Seng and two other SPCC members who are Grabbu's key competitors. Oz Warren is grilled on his political affiliations in Prekka. During the hearing his explanation is continuously interrupted by the Panel. The Panel rejects Grabbu's third application for the COA on the ground that: (a) Oz Warren's offer of free Sailor Smith tickets constitutes Corruption under Section 3 of the Act; and (b) Oz Warren being a Prekka legislator might bring unwanted foreign influence into Singapore's domestic politics.

Two days later, the Minister of Trade writes to Oz Warren informing him:

> "Based on the SPCC's report on the COA application, I hereby terminate Grabbu's operations in Singapore pursuant to Section 5 of the Act."

Advise Oz Warren on Grabbu's prospects for judicial review against the decisions of the SPCC and the Minister, and the remedies it should seek against them.

End of Section A

SECTION B (CONSTITUTIONAL LAW)

Choose any two questions

Question 2

Given the jurisprudential developments which have taken place since the 20th century cases of *Colin Chan v Minister for Information and the Arts* (1995), *Colin Chan v PP* (1994), and *Nappalli Peter Williams v Institute of Technical Education* (1999), if you were to advise the Jehovah's Witnesses on the status of their constitutional rights today, how would you re-litigate these cases? What are the prospects for the successful vindication of their fundamental liberties?

Question 3

The Singaporean Parliament has passed the Efficient Delivery Act (EDA), a piece of legislation aimed at streamlining delivery services within the city-state and reduce traffic congestion. A key provision of the EDA permits the use of autonomous drones for delivering goods.

Mr Abraham Karem, a resident living near a designated drone delivery zone, is concerned that the constant drone traffic will disrupt his enjoyment of his property and raises privacy issues as the drones fly past his windows. He is also upset that the Minister has designated a grass patch next to his house as a drone parking zone, which would further increase drone traffic passing his house. He argues that the Minister should have designated a vacant school site, which is located 250m away from Mr Karem's house as a drone parking zone instead. He files a complaint with the Ministry.

A month later, Mr Karem receives a Notification from the Collector that his property had been gazetted under section 5 of the Land Acquisition Act 1966 as being required for a public purpose as it was abutting the grass patch. The Government plans to amalgamate Mr Karem's property with the grass patch, and to offer the amalgamated site for sale to the highest bidder to operate the drone delivery parking site. Mr Karem discovers that his neighbours whose properties are on the other side of the field had not been served a similar acquisition notice and his objection to the acquisition was rejected by the Collector.

Mr Karem wants to challenge the constitutionality of the EDA, the designation of his area as a drone delivery zone, and the acquisition notice. Advise him as to whether he has any viable constitutional claims, including whether he would be able to establish locus standi.

Question 4

"In the exercise of its judicial power, the Singapore courts' approaches to constitutional interpretation reflect its commitment to upholding the principles of constitutional supremacy and separation of powers."

Critically discuss this statement by reference to the relevant case laws.

Question 5

"Those who spread lies, attack the courts, and besmirch the reputation of politicians do not enjoy the protection of Article 14."

Critically discuss this statement.

End of Section B

--- END OF PAPER ---